Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1121
Claimant:	Brittany Martin
Adjuster:	Darin Tyler

28 Mar 2024 - Claim opened following report of a sideswipe collision during a lane change on a multi-lane roadway. Insured states the other vehicle drifted into their lane as they were merging. Both drivers reported as ambulatory at scene. Police report requested. Initial photos of both vehicles received and saved to file.

5 Apr 2024 - Claimant reports headache, dizziness, and light sensitivity following the collision and has been evaluated at an urgent care facility, where a concussion was diagnosed. Claimant is now represented by counsel. All further contact to be directed to the attorney of record. Letter of representation received and noted.

7 Apr 2024 - Spoke with claimant's attorney regarding the concussion diagnosis. Requested medical records and a current treatment plan. Attorney indicates client is still experiencing symptoms and has been referred to a neurologist. Authorization forms sent to counsel for signature. Reserve reviewed and adjusted to reflect injury severity.

16 Apr 2024 - Liability analysis in progress. Police report indicates the other driver was cited for failure to maintain lane. Insured's dashcam footage reviewed and appears consistent with the other vehicle changing lanes into the insured's path. Subrogation considered against the other carrier. Awaiting the other carrier's position on fault.

19 Apr 2024 - Received neurologist's preliminary report through claimant's counsel, confirmnig post-concussion symptoms and recommending follow-up imaigng and a period of restricted activity. Demand package expected from counsel. File flagged for supervisor review due to bodily injury exposure and attorney involvement. Next follow-up set for review of demand package.

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Recorded Statement

Claim number:	C-1121
Statement of:	Brittany Martin
Taken by:	Darin Tyler
Date:	29 Mar 2024

Q: Thank you for giving us your time today. This recorded statement concerns the collision you reported while changing lanes in Houston, Texas. Please state your full name for the record.

A: I'd rather just give the facts, if that's okay. I'm the driver of the blue sedan.

Q: That's fine. Can you describe where you were when the collision happened?

A: I was on the interstate, in the middle of the three lanes, heading toward downtown. Traffic had slowed a bit, so I checked my mirror and signaled to move into the right lane.

Q: Did you check your blind spot before you moved over?

A: I looked over my shoulder, yes. I didn't see anything right beside me, so I started to merge.

Q: What happened next?

A: A pickup truck came up on my rihgt side and clipped the rear quarter panel of my car. It pushed me back toward the center lane and I had to correct hard.

Q: Did the other driver stop?

A: He pulled onto the shoulder ahead of me. We both got out and exchanged information.

Q: Did you feel any injury at the scene?

A: I had a headache right away and felt dizzy. The airbag didn't deploy, but my head hit the side window. I was confused for a little while after.

Q: Did you seek medical attention?

A: Yes, an ambulance took me to the emergency room. They diagnosed a concussion and told me to rest and aviod screens for a while.

Q: Are you still experiencing symptoms?

A: Some light sensitivity and trobule concentrating. My doctor has me off work for now.

Q: Thank you. Is there anything you'd like to add?

A: Only that I was following the signal rules and I'd like this handled quickly.

Q: Thank you. This concludes the statement.